present case from *Patterson Drug Co.* v. *Kingery, supra.* Because the unsuccessful plaintiffs in that earlier case were pharmacists, the court said, "theirs was a prima facie commercial approach," 373 F. Supp., at 686. The present plaintiffs, on the other hand, were asserting an interest in their own health that was "fundamentally deeper than a trade consideration." *Ibid.* In the District Court's view, the expression in *Valentine* v. *Chrestensen,* 316 U. S. 52, 54–55 (1942), to the effect that "purely commercial advertising" is not protected had been tempered, by later decisions of this Court, to the point that First Amendment interests in the free flow of price information could be found to outweigh the countervailing interests of the State. The strength of the interest in the free flow of drug price information was borne out, the court felt, by the fact that three States by court decision had struck down their prohibitions on drug price advertising. *Florida Board of Pharmacy* v. *Webb's City, Inc.,* 219 So. 2d 681 (Fla. 1969); *Maryland Board of Pharmacy* v. *Sav-A-Lot, Inc.,* 270 Md. 103, 311 A. 2d 242 (1973); *Pennsylvania State Board of Pharmacy* v. *Pastor,* 441 Pa. 186, 272 A. 2d 487 (1971).[12] The District Court recognized that this Court had upheld—against federal constitutional challenges other than on First Amendment grounds—state restric-

[12] The Florida and Pennsylvania decisions appear to rest on state constitutional grounds. The Maryland decision was based on the Due Process Clause of the Fourteenth Amendment as well as on provisions of the State Constitution.

Accord: *Terry* v. *California State Board of Pharmacy,* 395 F. Supp. 94 (ND Cal. 1975), appeal docketed, No. 75–336. Contra: *Urowsky* v. *Board of Regents,* 38 N. Y. 2d 364, 342 N. E. 2d 583 (1975); *Supermarkets General Corp.* v. *Sills,* 93 N. J. Super. 326, 225 A. 2d 728 (1966).

See Note: Commercial Speech—An End in Sight to *Chrestensen?* 23 De Paul L. Rev. 1258 (1974); Comment, 37 Brooklyn L. Rev. 617 (1971); Comment, 24 Wash. and Lee L. Rev. 299 (1967).